

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PELTON INTERACTIVE, INC., *Complainant*

v.

FLEXPORT INTERNATIONAL LLC, *Respondent*.

DOCKET NO. 24-19

Served: August 22, 2025

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

ORDER ON RESPONDENT’S SECOND MOTION FOR MODIFICATION OF THE SCHEDULING ORDER

On August 19, 2025, Respondent Flexport International, LLC, (“Flexport”) filed Respondent’s Second Motion for Modification of Scheduling Order with supporting exhibits and requested expedited relief. (Dkt. 82.) On August 19, 2025, Complainant Peloton Interactive, Inc. (“Peloton”) filed Complainant Peloton Interactive Inc.’s Opposition to Flexport International LLC’s Motion for Extension of Scheduling Order with supporting exhibit and declaration. (Dkt. 83.) For the reasons set forth below, the motion is granted.

Flexport requests to extend the September 11, 2025, deadline to file its Reply Brief to September 15, 2025. Flexport argues that good cause exists for an extension because it did not receive Peloton’s Appendix until August 19, 2025, which was after the August 14, 2025, deadline set forth in the scheduling order. (Dkt. 72.) Although Flexport admits that it timely received an email link to Holland & Knight’s Sharepoint drive containing Peloton’s Appendix, it states it was unwilling to open the link because it did not contain the terms of service and contained a statement that “You should only accept if you trust Holland & Knight LLP.” Flexport states that it found this term of use to be unacceptable and requested that the documents be transmitted on a flashdrive. Flexport states that the flashdrive was not delivered until after business hours on Friday, August 15, 2025, and that for this reason it did not actually receive the delivery package until Monday August 19, 2025. Flexport argues that because the Sharepoint link contained an unreasonable term of use that Peloton did not effect service until it received the flashdrive. Flexport argues that this factual scenario warrants a three-day extension of its deadline, presumably to account for the number of days that receipt of Peloton’s Appendix was delayed. It requests that the deadline be extended by an additional day to September 15, 2025, because September 14, 2025, is a Sunday.

Peloton states in its opposition that it would have granted Flexport the professional courtesy of a three-day extension had it simply asked for one, but that rather than doing so Flexport asserted that effective service of the Appendix had not been accomplished and threatened to file a motion to strike on that basis. Peloton’s supporting declaration and exhibit includes an email chain between the parties discussing Flexport’s concerns about accessing the

Sharepoint drive and proposed resolution. The email chain shows that Peloton accepted Flexport's unwillingness to open the drive, acted promptly to prepare a flashdrive containing the documents, and delivered the flashdrive to Flexport after business hours on Friday August 15, 2025. Peloton argues that the Sharepoint link was accessible on delivery to Flexport on August 14, 2025, and notes that Federal Maritime Commission staff affirmed that it was able to access the documents on the Sharepoint drive. Peloton argues that service of the link to the Sharepoint drive was reasonable because email size limitations would not permit emailing individual PDFs. Peloton opposes the motion on the ground that Flexport has not demonstrated good cause for an extension.

46 C.F.R. § 502.114 governs service of documents in Commission proceedings of all pleadings, documents, and papers of every kind. It provides in pertinent part: "Such service must be made by delivering one copy to each party; by email; in-person hand delivery; or United States mail service." Although Peloton timely served its Appendix by email containing a link to the Sharepoint portal in which the documents were accessible, the link to the portal contained a term of use that Flexport found to be unreasonable and requested that the documents be transmitted by an alternative method. The undersigned finds that Flexport's refusal to access the link under these circumstances and request for alternative service to be reasonable. Peloton itself did not challenge Flexport's position in this regard and acted promptly to provide Flexport with a flashdrive containing its Appendix as an alternative means of service. Despite Peloton's best efforts, downloading the flashdrive took a substantial amount of time and for this reason was not delivered to Flexport until after business hours on Friday August 15, 2025, and not received by Flexport until Monday August 19, 2025. The undersigned finds that under these circumstances Flexport has established good cause for a three-day extension to file its Reply brief, and that a deadline of September 15, 2025, is warranted given that September 14, 2025, is a Sunday. Given that Peloton states it would have granted the professional courtesy of a three-day extension had one been requested, the undersigned finds that granting a brief extension will not prejudice Peloton.

Additionally, with respect to Peloton's assertion that it confirmed that Federal Maritime Commission staff were able to access the documents on the Sharepoint drive emailed to it on August 14, 2025, the undersigned notes that the files were not actually accessible on delivery because the service email did not contain login and password information or instructions on how to access the documents. For this reason, the undersigned directed OALJ staff to contact Peloton's counsel to obtain the necessary information, which was provided but caused a one-day delay in the ability to access the documents. For this reason, Peloton is directed to ensure that detailed instructions on how to open Sharepoint links be included in all future service emails.

It is **ORDERED** that Respondent's Second Motion for Modification of the Scheduling Order is **GRANTED**. The deadline to file Respondent's Reply Brief is extended to **September 15, 2025**.

MARY A. HERVEY -S

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Mary Apostolakos Hervey
Administrative Law Judge